

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Mercedes Bayon	Team: Team # 4	CCRB Case #: 201403384	☐ Force	☒ Discourt.	☐ U.S.
			☐ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Monday, 04/07/2014 9:19 AM	Location of Incident: Pitkin Avenue and Jerome Avenue; enroute to and at the 75th Precinct stationhouse	Precinct: 75	18 Mo. SOL 10/7/2015	EO SOL 10/7/2015	
Date/Time CV Reported Wed, 04/09/2014 2:54 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Wed, 04/09/2014 2:54 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Daniel Sitruk	21263	940742	075 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Keith Hockaday	986	940263	075 PCT
2. POM Michael Seiger	16689	952225	075 PCT
3. POM Kurt Klenke	10852	940337	075 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Daniel Sitruk	Discourtesy: At Pitkin Avenue and Jerome Avenue, in Brooklyn, PO Daniel Sitruk acted rudely toward § 87(2)(b)	
B.POM Daniel Sitruk	Discourtesy: At Pitkin Avenue and Jerome Avenue, in Brooklyn, while en-route to the 75th Precinct stationhouse and at the 75th Precinct stationhouse, PO Daniel Sitruk spoke discourteously to § 87(2)(b)	

Case Summary

On April 7, 2014, at approximately 9:19am, § 87(2)(b) was driving her vehicle in the vicinity of Ashford Street and Pitkin Avenue, in Brooklyn when she was stopped by PO Daniel Sitruk and PO Michael Sieger because she had a fraudulent inspection sticker. She alleged that PO Sitruk threw her cell phone when he was placing her under arrest (**Allegation A**) and that he used discourteous language towards her while en-route to the stationhouse and at the stationhouse (**Allegation B**). § 87(2)(b) was arrested by PO Sitruk for § 87(2)(b) (encl. 3-10).

Mediation, Civil, and Criminal Histories

This case was not mediation eligible. A request has been submitted to the NYC Office of the Comptroller regarding a notice of claim inquiry and will be included in the case file upon receipt.

§ 87(2)(b)) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

PO Sitruk has been a member of service for 8 years and there are no substantiated CCRB allegations against him. This is the first CCRB complaint filed by § 87(2)(b) (encl. 1-2).

Findings and Recommendations

Allegation A: Discourtesy: At Pitkin Avenue and Jerome Avenue, in Brooklyn, PO Daniel Sitruk acted rudely toward § 87(2)(b)

§ 87(2)(g) According to § 87(2)(b) during her apprehension PO Sitruk grabbed her cell phone out of her hand and “tossed it.” She did not see where the cell phone landed, but testified that it was later returned to her. According to PO Sitruk, § 87(2)(b) did have a cell phone in her hand, which he removed and placed on the hood of her vehicle when he was handcuffing her. He denied that he threw the cell phone and testified that he later took the cell phone from the roof and it was recovered by § 87(2)(b) s boyfriend at the stationhouse (encl. 18-20). PO Sieger did not recall the specifics of the incident or what occurred during § 87(2)(b) s apprehension. He did not recall her having a cell phone or see PO Sitruk throw a cell phone or any other item (encl. 24-25). § 87(2)(g)

Allegation B: Discourtesy: At Pitkin Avenue and Jerome Avenue, in Brooklyn, while en-route to the 75th Precinct stationhouse, and at the 75th Precinct stationhouse, PO Daniel Sitruk spoke discourteously to § 87(2)(b)

§ 87(2)(g) § 87(2)(b) alleged that while they were at Pitkin Avenue and Jerome Avenue, PO Sitruk called her a felon and that she was crazy. She further alleged that while they were en-route to the stationhouse, PO Sitruk told her “This is what you fucking get. You’re in my fucking house now. You need to shut up,” and “Yea you’re a fucking criminal. You fucking felon. You got an I-Card. People want you.” Furthermore, § 87(2)(b) alleged that while she was in the holding cells, PO Sitruk entered the holding cell area and when she complained about not feeling well he replied,

“See what happened? I have asthma too. Don’t fuck with me.” Based on § 87(2)(b) s testimony, she and PO Sitruk were alone while en route to the 75th Precinct stationhouse and when he made the above comment while present at the 75th Precinct stationhouse.

According to PO Sitruk, he did not make any of the above statements to § 87(2)(b) nor did he recall if during the check of her identification it was determined that she had an I-Card. He further stated that he never went into the holding cells and interacted with her and denied that he told her “don’t fuck with me” or that he had asthma. PO Sitruk stated that PO Klenke was guarding the holding cells and at some point while he was preparing the arrest paper work, PO Sitruk was re-assigned to guard the holding cells because PO Klenke took § 87(2)(b) to the hospital (encl. 18-20). During PO Klenke’s CCRB statement, he noted that his memo book indicated he removed § 87(2)(b) to the hospital, but he did not recall the details surrounding this. PO Klenke did not recall seeing PO Sitruk interacting with § 87(2)(b). He stated that there were no females in the holding cell with § 87(2)(b) and that the males are housed separately where they are not visible or within hearing distance from one another (encl. 28-29). During PO Sieger’s CCRB testimony, he stated that he did not hear PO Sitruk make the above statements (encl. 24-25) and as noted by § 87(2)(b) he would not have been present and she was alone with PO Sitruk during the time PO Sitruk allegedly made the above statements.

§ 87(2)(g)

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date